

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE.
(JUDICIAL DEPARTMENT)

CRIMINAL APPEAL No.642/2017.

Muhammad Shahzad
Vs.
The State, etc.

CRIMINAL REVISION NO.380/2017.

Irfan Ullah
Vs.
Muhammad Shahzad and another.

JUDGMENT

DATE OF HEARING: 16.11.2021.

APPELLANTs BY: M/s. Shahid Azeem and Mudassar Naveed
Chatha, Advocates.

STATE BY: Rai Asif Mehmood, Deputy Prosecutor
General.

COMPLAINANT by: Rai Munir Zafar Sangra, Advocate.

.....

MUHAMMAD AMJAD RAFIQ, J:- Muhammad Shahzad appellant was tagged with charge of unlawful killing of Farman Ullah back in year 1998; he jumped the bail and absented himself during the trial and by the time all co accused who were carrying allegation of causing injuries to Imtiaz PW in the same occurrence stood acquitted from the trial court vide judgment dated 06.03.2017. He was re-arrested on 10.06.2015, put to trial again; his trial was concluded in the absence of Najeeb Ullah complainant; Najjabat Khan Patwari, Saeed Anwar SI Investigating officer, all three being dead and Hammed Ullah being won over. Only witness left to stay was Imtiaz, injured PW-6. Prosecution procured previous statements of complainant and Patwari recorded in an earlier trial, whereas for investigating officer, who though did not appear in earlier trial being a proclaimed offender yet was led through secondary evidence and same is the position in this trial too; prosecution

selected Riaz Hussain retired HC/159 as for secondary evidence. after conclusion of trial in case FIR No. 01 dated 07.01.1998 u/s 302/324/34/148/149 PPC registered at Police station Bharrana District Jhang, appellant was convicted and sentenced by the trial court as under;

Imprisonment for life u/s 302 (b) PPC with compensation of Rs. 500,000/- to be paid to legal heir of deceased, in case of default to further undergo 6 months' SI.

Benefit of section 382-B Cr.P.C. was extended.

Appellant has assailed his conviction and sentence through forecited appeal and Revision brought by complainant for enhancement of sentence; both are being decided through this common judgment.

2. Episode of crime in the prosecution case theory, encompassed Muhammad Shahzad Ahmad appellant, Tariq, Nasir, Muhammad Farooq, Ikram Ullah and Fakhar all armed with Rifles in the canvas and framed them as the perpetrators sitting ambushed near the house of Karam Machhi on the way to Mouza Sardary Wala, when at about 3/30 p.m. on 7th January, 1998 Najeeb Ullah complainant along with Hamed Ullah on one motorcycle, while Farman Ullah and Imtiaz on the other were halted, who alighted from their bikes; appellant's fire hit Farman Ullah over the left ear and passed through the head; bullet from rifle of Tariq grooved in left bicep of Imtiaz; all accused came out and started indiscriminate firing upon complainant party, some more fires hit on left bicep, left hand and thumb of Imtiaz. Motive as alleged was murder of Khan Muhammad grandfather of Shahzad appellant, around 37/38 year ago by Sher Muhammad being maternal uncle of Farman and Cousin of complainant.

3. After usual investigation report under section 173 Cr.P.C. was submitted in court and the accused was charge sheeted, to which he pleaded not guilty and claimed trial. During trial the prosecution examined seven witnesses along with previous statements of Najeeb Ullah (complainant) as PW-6 and Najjabat Khan Patwari (PW-10) and closed its case. Thereafter, the accused when examined under section 342 Cr.P.C. denied the prosecution evidence, however, neither produced any witness in defence nor himself appeared in the dock within the

meaning of section 340(2) Cr.P.C. and on conclusion of trial he was convicted and sentenced as detailed above.

4. Respective contentions of proponents were attended; record perused in the light of such submissions.

5. In the impugned judgment, as per paragraph-16, learned trial court has disbelieved the recovery from the accused/appellant on the ground that no crime empty was secured from the place of occurrence and recovery of rifle effected on 13.02.1998 though found by FSL as in working condition cannot be held with certainty that it was the very weapon used by appellant during the occurrence. During statement of PW-2 Muhammad Ayoob SI, he admitted that memo of recovery in original was not produced in support of recovery from the accused/appellant; such recovery was rightly rejected by the trial court.

6. Similarly, in paragraph-18, of impugned judgment, motive was also slipped from the hands of prosecution and court held that at the time of occurrence appellant was of 19 years of age and might have been prompted by his co accused who had in same relation. This court has also observed the same that motive in this case is inadequate and could not be proved through any cogent evidence; even investigating officer neither in first trial nor in this appeared as witness to confirm or null the motive part.

7. Medical evidence was brought on record by Dr. Muhammad Sharif PW-3 who examined Imtiaz injured on the same day at 7.30 p.m. (after four hours) and observed three injuries as follows;

- i. *A lacerated wound of 1 c.m. x 1.5 c.m., shin deep on the front of outer and upper part of left shoulder. X-ray was advised.*
- ii. *Seven wounds of 1 c.m. x 1 c.m. skin deep, each in an area of 6 c.m. x 5 c.m. on the front of left upper arm upper apart below injury No., the edges were lacerated and in a grazing shape. X-ray of left upper arm was advised.*
- iii. *A lacerated wound of 2.5 c.m. x 1 c.m. muscle deep on the palmer surface of left thumb.*

Doctor observed duration of injuries as 6 hours and nature as caused by firearm weapon. Though all the accused were armed with rifles but nature of injuries reflects otherwise, which was admitted by the doctor as

could be result of one fire; further admitted that injuries were simple in nature and tone and tenor of such witness was indicative of the fact that injuries were probably caused by 12 bore gun and not with rifle. There is conflict in ocular and medical account particularly when no crime empties were collected in this case. This conflict is further examined in the light of his deposition for post mortem examination which was conducted with a delay of 18/19 hour on the next day at 10.00.a.m. and observed following injuries;

- i. *A lacerated wound 1 c.m. x 1 c.m. with inverted edges on the left side of his head at a distance of 3 c.m. above the pinna of left ear (Entry wound)*
- ii. *A lacerated wound of 2 c.m. x 2 c.m. with inverted (sic) edges on the back of left side of head (Exit wound)*

Doctor observed duration between injury and death as 1 x 1½ hours while between death and postmortem as 16 to 20 hours. he admitted as soon as he received the papers, he started the examination. Though he had admitted to court question that as per book written by Parikh, death in like situation should have been instantaneous, yet did not explain further with respect to injury in the present case. Defence tried through cross examination that brain was not prolapsed from exit wound and it was not the serious injury, therefore, deceased remained alive for 1 to 1x1 ½ hours. Though medical evidence to the extent of present appellant is apparently corroborated yet it would be discussed in the ocular account section ahead in the light of position of deceased, the appellant and the site plan; however, it would be appropriate to throw light first on the proposition that if deceased could remained alive for such a longer period after receiving firearm injury into his head/skull.

C.K. Parikh in his Text book of Medical Jurisprudence, Forensic Medicine and Toxicology at page 4.51 (Q. 4.29.) commented upon **'physical activity after fatal firearm injury'** in following words;

"This depends upon the site of injury and the organ involved. Unless there is gross destruction of brain, cardiovascular system, or pulmonary system, some physical activity is possible in many cases. However, it is shorter in firearm victim than in victims of stabbing. In a pistol shot through the right temple perforating the brain and exiting on the left temple, the victim was a position to sit and answer questions nine hours after the shooting, though he succumbed to the injuries then. A man who got a shot in his heart by a pistol

could walk half a mile before he collapsed. A victim of 0.32 caliber bullet, which penetrated his heart, lung, and liver, fell to the ground, pulled out his gun, and shot the assailant in the chest. He died 20 minutes later. Death is instantaneous if there is a gaping wound of the heart or the medulla is involved”.

Doctor has not explained the nature of injury in this case properly, therefore, above condition of deceased can be presumed which is in line with duration between injury and death.

8. Prosecution for ocular account has put Imtiaz injured as PW-6 and took help from previous statement of Najeeb Ullah complainant recorded in an earlier case for corroboration yet it is lurking on legal premises with respect to its method of tendering into evidence; Hamed Ullah was given up being won over, therefore, only evidence of one witness requires reappraisal. Though learned defence counsel has categorically alleged that this witness has been disbelieved in earlier trial with respect to his own injuries and all the accused stood acquitted who were given role of firing upon the injured; therefore, in no case his testimony is trustworthy for the role of present appellant. Learned complainant counsel was of the view that injured after receiving injury fell down in a pit, therefore, could not clearly see who actually had fired upon him, but to the extent of role of present appellant he was conscious then. Before embarking upon his testimony, role of appellant with respect to injury on the head of deceased is examined in the light of medical evidence and position of parties at the crime scene. Entry wound on left pinna of ear is not possible from point of presence of appellant and the deceased with stated positions who were facing each other, when the witness deposed that they alighted from their bikes. Other stance of turning back the bikes though was not proved, yet for the sake of argument, if it is considered that seeing the assailant, deceased tried to turn back and in that position received the fire, then deceased must have fallen from the motor bike and corresponding injuries due to fall should have been on his person which are missing in the post mortem report and deposition of doctor; injured was also sitting at rear seat but did not have such injuries on his person. Evidence of injured witness PW-6 was examined in the light of respective contentions; he admitted that both the parties related inter se

and developed enmity is also evident, he faced certain confrontation during his deposition before the court which he could not justifiably accounted for. He admitted that near the place of occurrence, number of populations reside but none of them came forward to support the prosecution version. Accused/appellant also claimed his marriage with sister of this witness who was later divorced yet this fact was denied by this witness. Similarly, he denied the suggestion that he in fact committed the murder of Farman Ullah, which was the first version of appellant before investigating officer, yet prosecution could not rebut these facts due to non-appearance of investigating officer. He admitted that he and Hamed Ullah are resident of Kot Sultan while Farman Ullah deceased and Najeeb Ullah complainant were resident of Sardary wala which is at a distance of 1x 1 ½ kilometer from the place of occurrence. He was resident of ¾ acres from the place of occurrence and was aware of the area and the people around him, however, he reached the hospital after 4 hours despite he was seriously injured, though doctor has observed duration of his injury about six hours which create serious doubt about time and place of occurrence, yet place of occurrence could also be not proved because of the reason that investigating officer as well as draftsman could not appear as being dead. Transposition of Statement of draftsman was not according to law and secondary evidence for investigating officer does not establish the fact under discussion. The testimony of this witness with stammered presentation does not ring true particularly when he has already stood disbelieved in the previous trial for his own injuries. His evidence cannot be stretched against the appellant for sustaining the conviction and sentence. Reliance on is on the case “ISHTIAQ HUSSAIN and another versus The STATE and others” (2021 SCMR 159) and “NAZIR AHMAD versus MUHAMMAD IQBAL and another” (2011 SCMR 527).

9. Coming to the proposition that as to whether the statement of Najeeb Ullah recorded in an earlier trial could be read against the appellant is responded with the observation that evidence declared relevant through Qanun-e-Shahadat Order, 1984 could be brought on

record as being admissible. The relevancy of statement recorded between the parties in an earlier trial is as follows:-

Article-47. Relevancy of certain evidence for proving, in subsequent proceeding, the truth of facts therein stated: Evidence given by a witness in a judicial proceeding or before any person authorized by law to take it, is relevant for the; purpose of proving, in a subsequent judicial, proceeding or in a later stage of the same judicial proceeding, the truth of the facts which it states, when the witness is dead or cannot be found, or is incapable of giving evidence, or is kept out of the way by the adverse party, or if his presence cannot be obtained without an amount of delay or expense which, under the circumstances of the case, the Court considers unreasonable

Provided that—

the proceeding was between the same parties or their representatives-in-interest;

the adverse party in the first proceeding had the right and opportunity to cross-examine;

the questions in issue were substantially the same in the first as in the second proceeding.

Explanation: A criminal trial or inquiry shall be deemed to be a proceeding between the prosecutor and the accused within the meaning of this Article.

Mere tendering of such statements cannot be stretched as evidence unless to be proved as required by law. the relevant provision in this respect is cited in following Article of forecited Order, 1984:-

Article-154. What matters may be proved in connection with proved statement relevant under Article 46 or 47:

Whenever any statement, relevant under Article 46 or 47, is proved, all matters may be proved either in order to contradict or corroborate it, or in order to impeach or confirm the credit of the person by whom it was made, which might have been proved if that person had been called as a witness and had denied upon cross examination the truth of the matter suggested.

It requires that previous statements under Article 46 & 47 would first be proved and then its corroboration and contradiction would be taken up. In this case, first matter for consideration is how to prove such previous statement. Trial court has invented to transpose the copies of previous statements into this trial from its own record, Which practice is not warranted. To track the correct position, it is observed that practice adopted by trial court in this case is permissible only in civil cases or it has some room in criminal trial as well. Unlike code of Civil Procedure, 1908, there is no specific provision in Cr. P.C which deals with transposition of statements in subsequent trial; nor any provision exist

relating to calling for record of any criminal court for the purpose of inspection and using it as evidence. Following is the relevant provision of Code of Civil Procedure, 1908:-

Order XIII Rule-10 CPC

*(1) The Court may of its own motion, and may in its discretion upon the application of any of the parties to a suit, send for, either **from its own records or from any other Court**, the record of any other suit or proceeding, and inspect the same.*

(2) Every application made under this rule shall (unless the Court otherwise directs) be supported by an affidavit showing how the record is material to the suit in which the application is made, and that the applicant cannot without unreasonable delay or expense obtain a duly authenticated copy of the record or of such portion thereof as the applicant requires, or that the production of the original is necessary for the purposes of justice.

(3) Nothing contained in this rule shall be deemed to enable the Court to use in evidence any document which under the law of evidence would be inadmissible in the suit.

This provision gives power to court to send for either from its own record of any other suit or proceedings. For criminal trial ‘any other proceedings’ obviously relates to a previous trial as mentioned in Article 47 above in following terms:-

Explanation: A criminal trial or inquiry shall be deemed to be a proceeding between the prosecutor and the accused within the meaning of this Article.

Yet this provision of CPC cannot be stretched for inspection of court record by a criminal court in a criminal trial. Though section 94 of Cr. P.C and Article 158 & 161 give power to the criminal court to call for any document yet it does not include court record; even then those section simply authorize to calling of document; as per provisions of Article 158 & 161, parties are not exempted from producing the primary evidence of such document or the secondary as the case may be.

Section-94 of code of Criminal Procedure, 1898

Summons to produce document or other thing. *(1) Whenever any Court, or any officer in charge of a police station considers that the **production of any document** or other thing is necessary or desirable for the purposes of any investigation, inquiry, trial or other proceeding under this Code by or before such Court or officer, such Court may issue a summons, or such officers a written order, to the person in whose possession or power such document or thing is believed to be, requiring him to attend and produce it, or to produce it, at the time and place stated in the summons or order:*

Article-158. Qanun-e-Shahadat Order, 1984

Production of documents: (1) A witness summoned to produce a document shall, if it is in his possession or power, bring it to Court, notwithstanding any objection which there may be to its production or to its admissibility. The validity of any objection shall be decided on by the Court.

(2) The Court, if it sees fit may inspect the document unless it refers to matters of State, or take other evidence to enable it to determine on its admissibility.

(3) If for such a purpose it is necessary to cause any document to be translated, the Court may, if it thinks fit, direct the translator to keep the contents secret, unless the document is to be given in evidence; and if the translator disobeys such direction, he shall be held to have committed an offence under Section 166 of the Pakistan Penal Code (Act XLV of 1860).

Article 161. Qanun-e-Shahadat Order, 1984

Judge's power to put questions or order production: The Judge may in order to discover or to obtain proper proof of relevant facts, ask any question he places, in any form, at any time, of any witness, or of the parties about any fact relevant or irrelevant; and may order the production of any document or thing; and neither the parties nor their agents shall be entitled to make any objection to any such question or order, nor, without the leave of the Court, to cross-examine any witness upon any answer given in reply to any such question:

Provided that the Judgment must be based upon facts declared by this Order to be relevant, and duly proved:

Provided also that this Article shall not authorize any Judge to compel any witness to answer any question or to produce any document which such witness would be entitled to refuse to answer or produce under Articles 4 to 14, both inclusive, if the question were asked or the document were called for by the adverse party; nor shall the judge ask any question which it would be improper for any other person to ask under Article 143 or 144; nor shall he dispense with primary evidence of any document, except in the cases hereinbefore excepted.

In the circumstances, right course would be resort to certified copies of such statements for using as evidence because statements recorded in an earlier trial are termed as public documents as per Article-85 (3) of Qanun-e-Shahadat Order, 1984 with following expression;

“(3) documents forming part of the records of judicial proceedings”

Certified copies of such documents can be obtained under Article 87 and contents of such documents can be proved by production of such certified copies under Article-88 of said Order of 1984 which is as follows:-

Article 88. Qanun-e-Shahadat Order, 1984

Proof of documents by production of certified Copies: Such certified copies may be produced in proof of the contents of the public documents or parts of the public documents of which they purport to be copies.

When certified copies of such statements are produced, these are treated as proved under the principle of evidence in the form of presumption referred as follows;

Article-91. Qanun-e-Shahadat Order, 1984

Presumption as to documents produced as record of evidence:
Whenever any document is produced before any Court, purporting to be a record or memorandum of the evidence, or of any part of the evidence, given by a witness in a judicial proceeding Or before any officer authorized by law to take such evidence or to be a statement or confession by any prisoner or accused person, taken in accordance with law, and purporting to be signed by any Judge or Magistrate or by any such officer as aforesaid, the Court shall presume— that the document is genuine; that any statements as to the circumstances under which it was taken, purporting to be made by the person signing it are true and that such evidence, statement or confession was duly taken.

(Emphasize supplied)

Prosecution has not followed the procedure highlighted above which was the requirement of law; the statement so transposed are rejected from consideration.

10. Another procedure which the prosecution could resort to is highlighted in proviso to Article 71 of Qanun-e-Shahadat Order, 1984 known as “**Shahada ala al-Shahadah**” which runs as under;

Provided further that, if a witness is dead, or cannot be found or has become incapable of giving evidence, or his attendance cannot be procured without an amount of delay or expense which under the circumstances of the case the Court regards as unreasonable, a party shall have the right to produce, “shahada ala al-shahadah” by which a witness can appoint two witnesses to depose on his behalf, except in the case of Hudood.

This method is lost sight of our practitioners and the courts which is based on Islamic principle, introduced for the first time through said Order in 1984. This principle of evidence is an exception to hearsay evidence and can successfully be used to prove the case in a situation when witnesses could not appear as being dead or for any other reason stated in the proviso under discussion.

11. Witnesses or documents, not having notice by the defence, cannot be produced or tendered respectively in evidence by surprise, therefore, it is incumbent upon the prosecution that whenever, any such statement is intended to be produce or any witness for *shahada ala al-shahadah* is adduced, copy of such statements be handed over to the defence well before their production. It ensures the observance of Constitutional duty with respect to due process and fair trial. Reliance is on cases reported as **1976 P Cr. L J 1040** Ran Nawaz v. The State; **1983 P Cr. L J 1513** “Sultan Khan v. the State” and **2019 YLR 2831** “Muhammad yasin and others v. the State”.

12. Once the earlier statements are proved as per procedure and requirement highlighted above, it becomes imperative for prosecution to produce evidence in corroboration of it. In this case prosecution has not brought on record the statement of Najeeb Ullah through the required process of law; therefore, such statement cannot be read in favour of prosecution; even no notice of such evidence was given to the defence and was taken by surprise, that was the reason against such admission of statements appellant has responded in his statement u/s 342 Cr. P.C that he reserves the right to assail such practice of court before higher forum and that was assailed by his counsel before this court during argument. In order to prepare his defence against intended evidence, Prosecution is obliged to give copies of such statements and documents to the accused before these are tendered in evidence. In this case though prosecution has made an attempt to prove the case through the statement of injured as PW-6, yet this witness has failed in material particulars; therefore, his testimony cannot be accepted.

13. So far as the question of longstanding absconsion of accused is concerned; no evidence was brought on record by the prosecution in the form of warrants or proclamation nor any witness was produced in this respect; only a bald question No. 12 was asked about proceedings u/s 512 of Cr. P.C which was denied by the appellant. Even copies of such proceedings were not brought on the record; therefore, prosecution has

failed to establish his willful absconsion in this case for which the appellant cannot be held responsible in the circumstance.

14. For what has been discussed above, since the prosecution has failed miserably to establish the charge against the accused/appellant, therefore, criminal appeal is allowed and by extending the benefit of doubt, the accused/appellant is acquitted of the charges against him. He shall be released forthwith if not required in any other case. The case property, if any, shall be disposed of in accordance with law and the record of the learned trial court be sent back immediately.

15. For the same reasons, the criminal revision seeking enhancement of sentence is dismissed.

(MUHAMMAD AMJAD RAFIQ)
JUDGE.

Approved for reporting.

Judge.

Javed*